

IN THE CIRCUIT COURT OF THE TWENTY-THIRD JUDICIAL CIRCUIT DEKALB COUNTY, ILLINOIS

DAVID C. BYERS, Petitioner,

vs.

PAULETTA D. DONATELLO, Respondent.

Case No. 25FA152

MOTION TO COMPEL SECURE COMMUNICATION

Comes now Petitioner, David C. Byers, by and through this Motion, and respectfully requests that this Honorable Court order Respondent, Pauletta D. Donatello, to comply with the communication provisions of the Judgment for Allocation of Parental Responsibilities and to prohibit Violette M. Donatello from blocking or refusing contact with Petitioner.

I. INTRODUCTION

This Motion is filed pursuant to the **Judgment for Allocation of Parental Responsibilities** (entered August 3, 2022), specifically **Section 21, 750 ILCS 5/602.5** (shared decision-making) and **750 ILCS 5/607(c)(1)** (interference with parenting time).

Since December 2024, Respondent has **willfully obstructed Petitioner's right to communicate with Violette**, including:

- **Encouraging Violette to block Petitioner's phone number**, including on iMessage and other secure communication platforms.
- **Refusing to provide Violette's phone number** to Petitioner, despite repeated requests.
- **Failing to ensure Violette engages in communication with Petitioner**, as required by **Section 21** of the Allocation Judgment.

Petitioner has made **repeated, documented** attempts to communicate with Violette, but Respondent's actions have **prevented meaningful contact**. Petitioner respectfully requests that this Court **compel Respondent to comply** with the communication provisions of the Allocation Judgment and **prohibit Violette from blocking or refusing contact**.

II. BACKGROUND

A. Court Orders and Communication Provisions

1. The **Judgment for Allocation of Parental Responsibilities** (entered August 3, 2022) grants both parents the right to communicate with Violette, including:
 - **Section 21:** *"Each parent shall be entitled to telephone calls and video chat at reasonable times and of reasonable length to the child..."*
2. The Judgment also requires both parents to **actively foster a healthy relationship** between Violette and the other parent.

B. Respondent's Obstruction of Communication

1. Violette's Refusal to Use Secure Communication:

- Violette has repeatedly blocked Petitioner's phone number and also **refused to use secure communication platforms (iMessage, FaceTime)**, despite Petitioner's requests.
- Respondent has **encouraged this behavior**, failing to correct Violette's refusal to engage with Petitioner.

2. Pauletta's Refusal to Provide Violette's Phone Number:

- Petitioner has made **at least 12 documented requests** for direct communication with Violette, including requests for her carrier assigned phone number and to use secure platforms (iMessage, FaceTime, Signal) These requests have been **ignored, refused, or obstructed** by Respondent in all documented instances. (see Talking Parents record)
- Respondent has **refused to provide the phone number**, despite the Allocation Judgment's requirement that both parents have access to the child. (see Exhibits A & B)

3. Pauletta's Failure to Ensure Contact:

- Respondent has failed to ensure Violette engages in communication with Petitioner, as required by **Section 21** of the Allocation Judgment. (see Exhibit C)

III. LEGAL ARGUMENTS

A. Respondent's Violation of the Allocation Judgment

1. Violation of Section 21

- a) The **Allocation Judgment** explicitly grants both parents the right to communicate with Violette via telephone calls and video chat. Respondent has obstructed this right by:
 - Refusing to provide Violette's phone number.
 - Failing to **ensure Violette engages in communication with Petitioner**.

B. Respondent's Violation of Illinois Law

1. Interference with Parenting Time (750 ILCS 5/607(c)(1))

- a) This statute **prohibits** a parent from interfering with the other parent's allocated parenting time and communication rights.
- b) Respondent has **willfully violated this law** by:
 - Encouraging Violette to **block Petitioner**.
 - Refusing to **provide Violette's phone number** to Petitioner.
 - Failing to **ensure Violette engages in communication with Petitioner**.
- c) Respondent's refusal to allow secure communication **interferes with Petitioner's parenting time** and violates this provision.

2. Violation of Shared Decision-Making (750 ILCS 5/602.5)

- a) This statute requires both parents to **facilitate and not obstruct** the other parent's relationship with their child.
- b) The **Allocation Judgment** grants both parents **equal decision-making responsibility**, including the right to communicate with the child.
- c) Respondent has **obstructed this right** by:
 - Refusing to **provide Violette's phone number**.
 - Encouraging Violette to **block Petitioner**.
- d) Respondent's actions constitute a **clear violation** of this statute, as they obstruct Petitioner's right to communicate with Violette

3. Emotional Abuse of Violette

- a) Respondent's actions **force Violette to choose sides** and **expose her to high-conflict dynamics**, which is **emotionally abusive** and **not in her best interests**.

IV. REQUEST FOR RELIEF

WHEREFORE, Petitioner respectfully requests that this Honorable Court:

1. Order Respondent to Immediately Provide Violette's Phone Number

- Direct Respondent to **provide Petitioner with Violette's carrier-assigned phone number** within **7 days** of the entry of this Order.

2. Order Respondent to Ensure Violette Engages in Secure Communication

- Direct Respondent to **ensure Violette engages in telephone calls and video chat with Petitioner** at reasonable times and of reasonable length.

- Direct Respondent to ensure Violette uses **iMessage, FaceTime, or other secure communication platforms** (whenever possible) to engage with Petitioner.
- Prohibit Respondent from **encouraging or permitting Violette to block Petitioner**.

3. Order Violette to Refrain from Blocking Petitioner

- Direct Violette to **refrain from blocking Petitioner** on any communication platform.
- Require Respondent to **correct Violette's behavior** and ensure she complies with this Order.

4. Sanction Respondent for Contempt

- The Court should **sanction Respondent** for her **willful obstruction** of Petitioner's right to communicate with Violette, including but not limited to:
 - **Fines.**
 - **Community service.**
 - **Contempt of court.**

5. Grant Any Further Relief the Court Deems Just and Proper

V. CONCLUSION

Petitioner respectfully requests this Honorable Court to grant the relief sought in this motion, thereby:

- Restoring Petitioner's ability to communicate **securely and privately** with Violette.
- Ensuring compliance with the **Allocation Judgment, 750 ILCS 5/602.5, and 750 ILCS 5/607(c)(1)**.
- Protecting Violette's **emotional and mental well-being** by providing her with **secure, consistent communication** with Petitioner.

VI. CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of this Motion has been served upon **Pauletta D. Donatello** via **e-filing** on this **10th day of April, 2026**.

Respectfully submitted,



David C. Byers

Petitioner, Pro Se

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EXHIBITS

- **Exhibit A:** communication_sample-10_1_2025.pdf
- **Exhibit B:** communication_sample-10_27_2025.pdf
- **Exhibit C:** communication_sample-4_12_2026.pdf
- **Exhibit D:** TalkingParents Record (Dec 2024 - April 1, 2026)